

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KABIR SINGH SIKAND,

Petitioner

VS.

PREETI HOODA SIKAND,

Respondent

) Case Number: FDI-23-798647

) Hearing Date: April 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: SPOUSAL OR PARTNER SUPPORT, & CHILD SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

1) Petitioner Kabir Sikand (Father) and Respondent Preeti Sikand (Mother) married on 11/28/2007.

The parties disagree regarding their date of separation. Father contends the parties separated on 11/24/2020, for a marriage of 13 years. Mother contends the parties separated on 9/21/2023, for a marriage of 15 years and 10 months. The parties have one minor child, Kai (DOB: 11/4/2014, age 11). Father is represented by attorney Ana Cazeneuve of DeLacey, Riebel & Shindell LLP.

Mother is represented by attorney Anne Fokstuen.

2) The Court notes that in 2024, both parties filed Requests for Domestic Violence Restraining Order against the other party. However, per the Stipulation and Order filed 6/14/2024, the parties agreed to dismiss their Requests for DVRO without prejudice.

3) On for hearing is Mother's Request for Order filed 1/23/2026 seeking guideline child and temporary spousal support retroactive to the date she filed her Request for Order, as well as an order requiring that all child support add-ons be shared in accordance with Family Code section 4061. Mother further asks the Court to delay any imputation of income to her until August 2026

1 because she is currently taking classes at City College in San Francisco to update her
2 photography skills. Mother states that she is 48 years old and was a homemaker during the
3 parties' marriage. Mother states she has a BFA in New Media and an MFA in photography and
4 she currently works as a blog editor, technical consultant, and website designer for a school in
5 India (for which she is paid \$1,000 per month for 25 hours of work per week). Mother states she
6 has been looking for work, including as a barista, but has been unsuccessful. Mother states she
7 has borrowed \$230,000 from family to pay expenses, including paying \$170,000 in attorney's
8 fees. Mother states she currently receives food stamps. Mother states Father is a successful
9 technology professional earning \$240,000 annually who is in sole possession of the parties' three-
10 story, seven room Queen Anne house in Hayes Valley with a separate in-law apartment that the
11 parties used to rent out to tenants.

- 12 4) On 1/20/2026, Mother filed an Income and Expense Declaration. Mother states her income is
13 \$1,000 per month. Mother states her monthly expenses total \$7,880. Mother states she has \$7,221
14 in cash savings and her other assets are "TBD". Mother states she owes \$21,629 for a car, \$3,598
15 for credit card debt, and \$165,000 for a loan from family and friends. Mother also states their son
16 spends 25% of his time with Mother.
- 17 5) On 2/4/2026 and 2/5/2026, a long-cause hearing was held. Per the Order After Hearing filed
18 2/6/2026, Judge Mori made final custody orders, awarding Father sole physical custody of Kai
19 and awarding joint legal custody of Kai with Father having final tiebreaker decision-making. The
20 order also adopts their parenting coordinator's recommendation for Kai to be in Mother's care
21 every other weekend on Friday at school pick up and drop off on Sunday at 7:30 PM or through
22 Monday at 7:30 PM if there is no school on that Monday, and one day per week on Mondays, and
23 the parties to alternate holidays and school breaks (including week on / week off during summer).
- 24 6) On 4/10/2026, Father filed a Responsive Declaration. Father states he consents to guideline child
25 support but does not consent to pay spousal support. Father states he was previously ordered to
26 pay child and spousal support to Mother (see Findings and Order After Hearing filed 5/23/2024).
27 However, at the hearing on 3/4/2025 (Findings and Order After Hearing filed 4/4/2025), the
28 parties agreed to set support at \$0 due to Father's job loss and the Court ordered both parties to
29 abide by the attached Seek Work Orders. Father states Mother has never provided her compliance

1 with the Seek Work Orders. Father states Mother holds a Bachelor's Degree in Communications
2 in addition to her other stated degrees. Father states the school for which Mother currently works
3 as a blog editor, technical consultant, and website designer is owned by Mother's family, and that
4 Mother previously informed Father that this position was a three-month temporary position.
5 Father states Mother has chosen to work part-time at below-market wages and takes voluntary
6 photography coursework one afternoon per week. Father notes Mother has not provided any proof
7 of enrollment, duration, or how the coursework will add to her existing credentials. Father
8 contends that had Mother complied with the Seek Work Orders issued 13 months ago, she likely
9 would have already secured full-time work at well above minimum wage. Father contends
10 Mother could be earning \$90,000 per year, or \$7,500 per month, and asks the Court to impute this
11 amount to Mother. Father states he began working for HubSpot in December 2025 after one year
12 of unemployment (during which Father states he incurred significant debt). Father states he has
13 made good faith settlement efforts regarding a support amount for Mother.

14 7) On 4/10/2026, Father filed a Memorandum of Points and Authorities.

15 8) On 4/10/2026, Father filed an Income and Expense Declaration. Father agrees that Kai is in
16 Mother's care 25% of the time.

17 9) On 4/16/2026, Mother filed a Reply Declaration. Mother states she is taking Advanced Photoshop
18 and Business Practices in Photography classes that require more than 30+ hours of weekly course
19 work and is walking dogs up to 10 hours weekly earning \$500 per month. Mother states she never
20 studied Communications and does not have a degree in it. Mother notes that Father only offers
21 her weekday visitation times, which impacts her ability to work on weekdays.

22 10) On 4/16/2026, Mother filed an additional Income and Expense Declaration. Mother states her
23 position at the school in India "ended."

24 11) On 4/16/2026, Mother filed a Statement of Support Calculations.

25 12) The Court notes the following upcoming hearing dates:

- 26 a. 5/5/2026 and 5/6/2026 – long-cause hearing on the issue of the parties' date of separation
 - 27 b. 6/1/2026 – Judicial Settlement Conference with Judge Luna
 - 28 c. 8/18/2026 – Family Law Long Cause Trial
- 29

B. Findings and Order

- 1) The Court finds good cause to impute Mother with 25 hours per week of minimum wage income. This amounts to $((\$19.81 \times 25) \times 52) / 12 = \$2,146$ per month. This order is made without prejudice to the Court's ability to impute additional income to Mother at the upcoming 8/18/2026 trial.
- 2) Mother shall continue to comply with the existing Seek Work Order. The Court's jurisdiction to modify child and spousal support retroactive to the date she secures a position of paid employment where she is earning more than \$2,146 per month is reserved.
- 3) Effective 1/23/2026, in accordance with the XSpouse calculation attached hereto and incorporated herein, Father shall pay to Mother \$472 per month in guideline base child support and \$3,427 per month in temporary guideline base spousal support, for total support due and owing of \$3,898 per month.
- 4) Base support for April 2026 shall be paid in full no later than 4/24/2026 at 5 PM.
- 5) The Court finds that Father owes to Mother support arrears in the amount of \$1,006 for the period 1/23/2026 – 1/31/2026 and \$7,796 for the period 2/1/2026 – 3/31/2026, for total support arrears due and owing of \$8,802 for the period 1/23/2026 – 3/31/2026. Commencing 5/15/2026, Father shall pay to Mother an additional \$1,467 by the 15th of each month for 6 months to satisfy these base support arrears.
- 6) Effective 1/23/2026, in addition to base child and temporary spousal support, Father shall pay as additional Smith / Ostler child and temporary spousal support a portion of any and all additional gross income (e.g., bonuses and vested RSUs) received in excess of his base salary of \$20,000 per month, pursuant to the Bonus Table attached hereto and incorporated herein. Smith / Ostler child and spousal support shall be paid to Mother within 10 days of Father receiving the additional income and he shall provide to Mother at the same time as payment documentary evidence showing the amount of additional income received by Father.
- 7) Effective 1/23/2026, the parties shall share 65 (Father) / 35 (Mother) the following child support add-on expenses:
 - a. All childcare costs incurred for employment as defined in Family Code section 4062(a)(1);

- b. All reasonable uninsured healthcare costs for Kai;
- c. All travel expenses incurred by Mother to take Kai to Tahoe for snowboarding team during snowboarding team season.
- 8) The procedure for requesting and paying reimbursement claims for reasonable uninsured healthcare costs shall be as set forth in Judicial Council Form FL-192.
- 9) The procedure for requesting and paying reimbursement claims for qualifying childcare costs, uninsured healthcare costs, and travel expenses incurred by Mother to take Kai to Tahoe during snowboarding team season shall be as follows. When a party (e.g. Party A) pays for a qualifying expense, within 30 days of paying the expense, Party A shall present to Party B: (a) an itemized statement of charges, (b) proof of payment, and (c) the amount due and owing from Party B. Within 10 days of receiving this information, Party B shall submit a payment to Party A for Party B's share of the expense.
- 10) The parties shall meet and confer to determine what Smith / Ostler child and temporary spousal support and what child support add-on reimbursements may be owed for the period 1/23/2026 – 4/30/2026. Father shall pay to Mother a portion of his bonus received in January 2026 for work performed in December 2025 if that bonus was received on or after 1/23/2026. The Court's jurisdiction over these issues is reserved.
- 11) The Court hereby sets a review hearing for **Tuesday, 9/15/2026 at 9:00 AM in Dept. 404** to review child and spousal support, review Mother's compliance with the Seek Work Order, and consider imputing full-time income to Mother. At least 10 calendar days prior to the next hearing date, both parties shall file and serve updated Income and Expense Declarations, Statements of Support Calculations, and update declarations (not to exceed 10 pages, not including exhibits). Mother shall attach to her declaration copies of her Seek Work logs for the period 5/1/2026 – 8/30/2026. The parties shall meet and confer regarding the issues to be heard at least 25 days in advance of the hearing date. If the parties settle their case before the hearing date and / or if their case proceeds to trial on 8/18/2026 on all issues, then the 9/15/2026 hearing date will be vacated.
- 12) Mother's attorney shall prepare the Findings and Order After Hearing, which shall include as an attachment the FL-342 form, the XSpouse calculation, the bonus tables, and an FL-192 form.

1 13) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
2 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
3 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
4 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
5 proposed order after hearing directly to the court. Failure to submit the order after hearing within
6 10 days may allow the other party to prepare a proposed order and submit it to the court in
7 accordance with CA Rules of Court, Rule 5.125(d).

Fixed Shares	Father	Mother	Monthly figures		Cash Flow		
#of children	1	0	2026			Guideline	Proposed
% time with NCP	0.00 %	25.00 %	GUIDELINE		Comb. net spendable	15959	15959
Filing status	HH/MLA	<-MFS	Nets(adjusted)		Percent change	0%	0%
# exemptions	2	1	Father		Father		
Wages+salary	20000	2146	13902		Payment cost/benefit	-3898	-3898
Self-employed income	0	0	Mother		Net spendable income	10004	10004
Other taxable income	0	0	Total		Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	63%	63%
Other nontaxable income	0	0	Addons		% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS		Total taxes	5897	5897
401(k) employee contrib	0	0	S.Clara SS		Dep. exemption value	0	0
Adjustments to income	0	0	Total		# withholding allowances	0	0
SS paid prev marriage	0	0	-		Net wage paycheck	13077	13077
CS paid prev marriage	0	0			Mother		
Health insurance	201	0			Payment cost/benefit	3898	3898
Other medical expense	0	0			Net spendable income	5955	5955
Property tax expense	1487	0	Proposed		Change from guideline	0	0
Ded interest expense	366	0	Tactic 9		% of combined spendable	37%	37%
Charitable contributions	0	0	CS		% of saving over guideline	0%	0%
Misc tax deductions	0	0	472		Total taxes	89	89
Qual bus income ded	0	0	SS		Dep. exemption value	0	0
Required union dues	0	0	Total		# withholding allowances	0	0
Mandatory retirement	0	0	3898		Net wage paycheck	1765	1765
Hardship deduction	0 *	0 *	Saving				
Other GDL deductions	0	0	Releases				
Child care expenses	0	0					

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

FC 4055 checking: ON

Per Child Information								
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS Payor
All children	75 - 25	0	0	0	Father	472	Father	472 Father
	75 - 25	0	0	0	Father	472	Father	472 Father

Annual Bonus Income Father

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Mother: 0
Prior relationship(s): OFF

Additional Cost to Father

Child Support			Spousal Support		Total CS	Total SS
Father's Bonus	% of bonus	\$	% of bonus	\$		(adjusted)
0	0.00	0	0.00	0	0	0
5,000	3.17	159	21.13	1,057	5,818	42,177
10,000	3.02	302	20.20	2,020	5,961	43,140
15,000	2.96	444	19.89	2,984	6,104	44,104
20,000	2.93	586	19.74	3,949	6,245	45,069
25,000	2.90	726	19.66	4,914	6,386	46,035
30,000	2.89	866	19.60	5,881	6,525	47,001
35,000	2.87	1,005	19.57	6,848	6,664	47,968
40,000	2.86	1,143	19.54	7,816	6,802	48,936
45,000	2.84	1,280	19.52	8,785	6,939	49,905
50,000	2.83	1,416	19.51	9,754	7,076	50,874
55,000	2.81	1,545	19.41	10,675	7,205	51,795
60,000	2.79	1,673	19.31	11,589	7,332	52,709
65,000	2.76	1,797	19.21	12,487	7,457	53,608
70,000	2.74	1,916	19.08	13,353	7,576	54,473
75,000	2.71	2,035	18.96	14,218	7,695	55,339
80,000	2.69	2,154	18.86	15,085	7,813	56,205
85,000	2.67	2,272	18.77	15,951	7,931	57,071
90,000	2.65	2,389	18.69	16,818	8,049	57,938
95,000	2.64	2,506	18.62	17,685	8,166	58,806
100,000	2.62	2,623	18.55	18,553	8,282	59,673
105,000	2.61	2,739	18.50	19,421	8,399	60,541
110,000	2.60	2,855	18.44	20,289	8,515	61,410
115,000	2.58	2,971	18.40	21,158	8,630	62,278
120,000	2.57	3,086	18.36	22,027	8,745	63,147
125,000	2.56	3,201	18.32	22,897	8,860	64,017
130,000	2.55	3,315	18.28	23,766	8,975	64,886
135,000	2.54	3,429	18.25	24,636	9,089	65,756
140,000	2.53	3,543	18.22	25,506	9,203	66,627
145,000	2.52	3,656	18.19	26,377	9,316	67,497
150,000	2.51	3,770	18.17	27,248	9,429	68,368
155,000	2.50	3,882	18.14	28,113	9,541	69,233
160,000	2.50	3,993	18.11	28,971	9,652	70,091
165,000	2.49	4,103	18.08	29,829	9,763	70,949
170,000	2.48	4,214	18.05	30,687	9,873	71,808
175,000	2.47	4,324	18.03	31,546	9,983	72,666
180,000	2.46	4,434	18.00	32,405	10,093	73,525
185,000	2.46	4,543	17.98	33,264	10,203	74,384
190,000	2.45	4,653	17.96	34,123	10,312	75,244
195,000	2.44	4,762	17.94	34,983	10,421	76,103
200,000	2.44	4,871	17.92	35,843	10,530	76,963
205,000	2.43	4,979	17.90	36,703	10,639	77,823
210,000	2.42	5,088	17.89	37,563	10,748	78,683
215,000	2.42	5,196	17.87	38,423	10,856	79,543
220,000	2.41	5,305	17.86	39,285	10,964	80,405

Annual Bonus Income Father

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Mother: 0
Prior relationship(s): OFF

Additional Cost to Father

Father's Bonus	Child Support		Spousal Support		Total CS	Total SS (adjusted)
	% of bonus	\$	% of bonus	\$		
225,000	2.41	5,413	17.84	40,150	11,072	81,270
230,000	2.40	5,521	17.83	41,014	11,181	82,135
235,000	2.40	5,629	17.82	41,880	11,289	83,000
240,000	2.39	5,737	17.81	42,745	11,397	83,865
245,000	2.39	5,845	17.80	43,610	11,504	84,730
250,000	2.38	5,952	17.79	44,476	11,612	85,596
255,000	2.38	6,059	17.78	45,341	11,719	86,461
260,000	2.37	6,167	17.77	46,207	11,826	87,327
265,000	2.37	6,273	17.76	47,073	11,933	88,193
270,000	2.36	6,369	17.72	47,848	12,029	88,968
275,000	2.35	6,454	17.65	48,537	12,114	89,658
280,000	2.34	6,539	17.58	49,227	12,198	90,347
285,000	2.32	6,624	17.51	49,917	12,283	91,037
290,000	2.31	6,708	17.45	50,607	12,368	91,727
295,000	2.30	6,793	17.39	51,297	12,452	92,417
300,000	2.29	6,876	17.33	51,977	12,536	93,097
305,000	2.28	6,958	17.26	52,650	12,618	93,770
310,000	2.27	7,040	17.20	53,322	12,700	94,442
315,000	2.26	7,122	17.14	53,994	12,782	95,114
320,000	2.25	7,204	17.08	54,667	12,864	95,787
325,000	2.24	7,286	17.03	55,339	12,946	96,459
330,000	2.23	7,369	16.98	56,018	13,028	97,138
335,000	2.22	7,452	16.93	56,701	13,111	97,821
340,000	2.22	7,551	16.92	57,518	13,210	98,638
345,000	2.22	7,655	16.92	58,378	13,315	99,498
350,000	2.22	7,759	16.93	59,238	13,419	100,359
355,000	2.21	7,863	16.93	60,099	13,523	101,219
360,000	2.21	7,967	16.93	60,959	13,627	102,079
365,000	2.21	8,071	16.94	61,820	13,730	102,940
370,000	2.21	8,174	16.94	62,681	13,834	103,801
375,000	2.21	8,278	16.94	63,541	13,938	104,661
380,000	2.21	8,382	16.95	64,402	14,041	105,522
385,000	2.20	8,485	16.95	65,263	14,144	106,383
390,000	2.20	8,588	16.95	66,124	14,248	107,244
395,000	2.20	8,691	16.96	66,985	14,351	108,106
400,000	2.20	8,794	16.96	67,846	14,454	108,966
405,000	2.20	8,895	16.96	68,691	14,555	109,811
410,000	2.19	8,996	16.96	69,535	14,656	110,655
415,000	2.19	9,097	16.96	70,380	14,756	111,500
420,000	2.19	9,198	16.96	71,224	14,857	112,345
425,000	2.19	9,298	16.96	72,069	14,958	113,189
430,000	2.19	9,396	16.95	72,895	15,056	114,015
435,000	2.18	9,493	16.94	73,706	15,152	114,826
440,000	2.18	9,589	16.94	74,517	15,249	115,637
445,000	2.18	9,686	16.93	75,329	15,345	116,449

Annual Bonus Income
Father

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Mother: 0
Prior relationship(s): OFF

Additional Cost to Father						
Child Support			Spousal Support		Total CS	Total SS
Father's Bonus	% of bonus	\$	% of bonus	\$		(adjusted)
450,000	2.17	9,782	16.92	76,140	15,441	117,260
455,000	2.17	9,878	16.91	76,951	15,537	118,071
460,000	2.17	9,974	16.90	77,763	15,633	118,883
465,000	2.17	10,070	16.90	78,574	15,730	119,694
470,000	2.16	10,166	16.89	79,386	15,825	120,506
475,000	2.16	10,262	16.88	80,197	15,921	121,318
480,000	2.16	10,358	16.88	81,009	16,017	122,129
485,000	2.16	10,453	16.87	81,821	16,113	122,941
490,000	2.15	10,549	16.86	82,633	16,209	123,753
495,000	2.15	10,645	16.86	83,445	16,304	124,565
500,000	2.15	10,740	16.85	84,257	16,400	125,377